Eastern India Powertech Ltd vs Assam Electricity Regulatory ... on 20 January, 2011

COURT-II

Before the Appellate Tribunal for Electricity
(Appellate Jurisdiction)

Appeal 136 of 2009

Dated :20th January, 2011
Present: Hon'ble Mr. Rakesh Nath, Technical Member
Hon'ble Mr. Justice P.S. Datta, Judicial Member

Eastern India Powertech Ltd. ... Appellant(s)
Versus
Assam Electricity Regulatory Commission ....Respondent(s)

Counsel for the Appellant(s): Mr. Krishnan Venugopal, Sr. Advocte
Mr. Manu Seshadri

Counsel for the Respondent(s): Ms. Swapna Seshdari for R-2
Mr. Pragyan Pradip Sharma &
Mr. Rupesh Gupta for R-1

ORDER

The Appeal by an independent power producer which was preferred in the middle of the year of 2009 is against the Order of the Commission dated 12th May, 2009. Numerous questions of fact and law have been raised in the Appeal by the Appellant. In course of hearing on 6th of January, 2011 it was submitted before us by the learned counsel for the Commission that the Commission was willing to proceed with hearing of final determination of tariff and complete the job within three months subject to the leave of the Tribunal. Upon hearing we directed that pendency of the Appeal will not deter the Commission to proceed with the final determination of tariff. The learned Senior Counsel for the Appellant sought for time to seek instruction from his client.

Now, it is submitted by the learned Senior Counsel for the Appellant that the Appellant is willing to have the Appeal withdrawn but without prejudice to the rights and contentions as have been raised in this Appeal, which in the event of such withdrawal, may be permitted to be raised before the Commission in course of hearing on final determination of tariff in addition to other aspects of fact and law relevant to all possible issues. The learned counsel for the State Electricity Board sought similar leave for her client also.

Upon hearing the learned counsel for all the parties we accordingly pass the following order:-

> The instant Appeal shall stand withdrawn without cost with liberty to the Appellant to raise all contentions of fact and law as have been raised in this Appeal before the

Commission by furnishing documents and submissions, written and/or oral at the time of hearing by the Commission on determination of final tariff. It shall also have liberty to produce any other documents not filed herein but relevant to the issues of final determination of tariff in course of hearing. Similarly, the State Electricity Board shall have liberty to produce all such documents as it will be liking to produce and make submission written and/or oral. The Commission shall upon hearing the parties concerned shall pass a reasoned order in accordance with the law within three months from the date of this order.

```
( Justice P.S. Datta)                                    (Rakesh Nath )
 Judicial Member                                        Technical Member
vs
 Vs
```